

Aneeta Rawat v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 9 July 2019 · WRIT - C No. 21793 of 2019 · **Writ disposed; Executive Engineer to consider the new-connection application under Annexure 4.2, and not to insist on an owner's NOC if an indemnity bond would serve.**

HEADNOTE

Where an occupant claiming through a deceased owner applied for a new electricity connection and the Junior Engineer stalled the papers for want of the owner's no-objection certificate, the High Court disposed of the writ by directing the Executive Engineer to consider sanction in accordance with Annexure 4.2 of the U.P. Electricity Supply Code, 2005, and not to insist on an NOC if an indemnity bond would serve, the applicant's husband appearing to be the natural heir of the deceased owner.

FACTUAL SUMMARY

Aneeta Rawat occupies a portion of House No. C-656, G.T.B. Nagar, Kareli, Allahabad, of which her late father-in-law Daya Ram was the owner; other heirs occupy another portion. Claiming co-ownership with her husband on Daya Ram's death, she applied on 29 December 2018 for a new electricity connection and deposited the Rs 100 processing fee. The Junior Engineer refused to process the papers further without a no-objection certificate from the owner. She contended that as a co-owner she needed no such NOC.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::Annexure 4.2

new connection — owner's NOC versus indemnity bond

HOLDING

An application for a new electricity connection by an occupant claiming through a deceased owner is to be considered by the Executive Engineer in accordance with Annexure 4.2 of the U.P. Electricity Supply Code, 2005. Where the applicant's spouse appears to be the natural heir of the deceased owner, the licensee need not insist on a no-objection certificate from the owner if an indemnity bond would serve the same purpose.

¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy Where an occupant claiming through a deceased owner applied for a new electricity connection and the Junior Engineer stalled the papers for want of the owner's no-objection certificate ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS A CO-OWNER AND WHETHER A NEW CONNECTION SHOULD IN FACT BE SANCTIONED

The Court did not decide title or grant the connection; it directed the Executive Engineer to consider the application in accordance with law on verification of records within one month of receiving the order and a comprehensive representation. ¶ 1